

22PSCV02307 22PSCV02307

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-09-15

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Case Number: 22PSCV02307 Hearing Date: September 15, 2026 Dept: 9

JOHN ROE 109 K.K.,

Plaintiff,

vs.

DOE 1; et

al.,

Defendants.

Case

No.: 22PSCV02307

Hearing Date: September 15,
2026

[TENTATIVE]

order RE:

motion to be relieved as counsel

On July 6, 2026, Attorneys Alina

Sookasian, James W. Lewis, and Slater Slater Schulman, LLP (collectively "Counsel"),

filed the instant motion to be relieved as counsel for Plaintiff John Roe 109

K.K. ("Client").

Counsel has filed a form MC051 and MC-052

and has lodged with the Court a copy of the proposed order on form MC-053 pursuant to CRC Rule 3.1362.

The MC-052 form states that Counsel served Client via mail at Client's last known mailing address which Counsel has confirmed as current within 30 days of filing the motion by telephone.

Counsel states that "[t]here has been an irreconcilable breakdown in the attorney-client relationship under CRPC-3-700(C)(1)(d)."

Counsel is ordered to file and serve a new and revised proposed order on form MC-053 prior to the commencement of the hearing on September 15, 2026. Provided that such new and revised proposed order is electronically filed at that time, the Court is inclined to grant the motions based on the declaration Counsel has filed. The revised proposed orders must include the following upcoming hearings and additional language:

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Item 6: Please add Client's current email address, if known.

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In item 7a: Delete "No other scheduled hearings other than Plaintiff's Motion to be Relieved as Counsel on 9/15/26" and replace with "11/16/26 at 10 am in Department 9, 312 N. Spring St. Los Angeles, CA 90012. All parties are ordered to appear."

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In item 7b: add "Status conference regarding status of settlement. All parties are ordered to file a joint report by no later than 11/9/26 stating:
(a) whether Plaintiff signed a settlement agreement and release, (b) if so, whether any obstacle or issue has arisen with respect to the allocation process for Plaintiff, (c) if so, what solution each party proposes to overcome the obstacle/problem, (d) whether Plaintiff and Defendant each still wish to proceed with the settlement, and (e) what if any motion practice will be necessary to resolve any dispute between the parties as to the enforceability of any settlement agreement and/or release."

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In Item 13: add "Moving Counsel is ordered to file proof of service of this signed order on all parties within 2 court days."

Counsel is responsible for determining if there are any other hearings scheduled, which must all be listed in the proposed order. For each hearing, Counsel must state the date, time, and location of the hearing including the address and Department number as follows: "Spring Street Courthouse, 312 N. Spring Street, Dept. 9, L.A., CA 90012."

Provided that Counsel presents a corrected proposed order at or before the hearing on this motion, the motion to be relieved as counsel will be granted. Otherwise, the motion will be denied without prejudice.

Prior to the commencement of the hearing, Counsel must also file and serve a declaration setting forth:

(1)
whether Client (Plaintiff John Roe 109 K.K.) has opted in or opted out of the settlement with the County;

(2)
whether Counsel has provided Defendant with a copy of a Release signed by Client confirming an election to opt in; and

(3)
whether there is any change in circumstance as to Client's election to opt in or out of the settlement with the County.

Counsel should note that after the order is signed, the order will only become effective upon the filing of a proof of service of a signed copy of the order on Plaintiff. Counsel will remain the attorney of record until Counsel files with the Court proof of service of the signed order. Counsel will be ordered to serve a copy of the signed order (MC-053) on Plaintiff within five days.

Counsel is ordered to serve copies of the instant order and the signed form MC-053 order on all parties, including Client, and

file proof of service of such within 2 days.